**SHERIFF OF THE HIGH COURT OF ZIMBABWE**

**versus**

**JABULANI NKOMO FAMILY TRUST**

**KEN ESTATE AGENTS**

**ASTRA BUILDING CENTER (PRIVATE) LIMITED**

IN THE HIGH COURT OF ZIMBABWE
CHIVAYO J
BULAWAYO, 16 October 2025 and 20 February 2026

**Interpleader application**

*S Mutandi,* for the claimant
*L Nyamupfene,* for the judgment creditor
No appearance for the applicant and judgment debtor

**CHIVAYO J**: The Sheriff of the High Court of Zimbabwe (the applicant) filed the present interpleader between Jabulani Nkomo Family Trust (the claimant), Ken Estate Agents (the judgment creditor), and Astra Building Centre (Private) Limited (the judgment debtors). Ken Estate Agents obtained a judgment in its favour under case number HC SUMM 80/23-1, and instructed the applicant to attach the judgment debtor's property in execution. The applicant duly executed the request, attaching, amongst other movable properties, certain motor vehicles which are subject to dispute herein. The claimant claims the motor vehicles are his, whereas the judgment creditor is of a different view. The applicant then filed the present application for the determination of whether or not the motor vehicles attached in execution are capable of being executed, considering the circumstances.

[1] The parties appeared before me on the 16th of October 2025, wherein I struck off the matter from the roll, and authorised the applicant to deduct her costs incurred during execution. Subsequent to that, the claimant requested the reasons for so doing. These are they.

**Background.**

[2] The applicant is the Sheriff of the High Court of Zimbabwe, duly represented by Tinashe Elias Gumbo, the Senior Additional Sheriff of the High Court in Bulawayo. The claimant is Jabulani Nkomo Family Trust, a registered Family Trust operating in terms of the laws of Zimbabwe. The judgment creditor is Ken Estates Agent, a company incorporated in terms of the laws of Zimbabwe. The judgment debtor is Astra Building Center (Private) Limited, a company incorporated in terms of the laws of Zimbabwe.

[3] In the case of *Ken Estates Agents* v *Astra Building Center (Pvt) Ltd* under case number HCSUMM80/23-1, the judgment creditor obtained an order in his favour, which ordered the judgment debtor to pay USD62 975.00. Pursuant to the judgment, the judgment creditor instructed the applicant to attach certain property in execution. Upon such attachment, the claimant filed an interpleader, claiming that the motor vehicles did not belong to the judgment debtor, but instead, belonged to the Jabulani Nkomo Family Trust. The claimant attached registration books in respect of three motor vehicles attached by the applicant.

[4] When the parties appeared before the court, the judgment creditor raised a point *in limine* that the matter was *res judicata.*

**Analysis**

[5] The judgement creditor raised the point that the matter was *res judicata,* in that under case number HCBC 396/25, the court made a finding and declared that the goods attached by the applicant are executable. It was the 1st respondent's submission that the said court order

remains extant as it has not been set aside by a competent court. The judgment creditor submitted that the matter was between the same parties, only that Jabulani Nkomo, who deposed to the affidavit on behalf of the claimant, had deposed to an affidavit claiming the same vehicles on his behalf, that time in his personal capacity. In light of that, the applicant prayed that the matter be dismissed with costs on a punitive scale.

[6] The claimant opposed the preliminary objection and, in their opposition, submitted that the matter was not *res judicata.* The claimant submitted that the requirements for a matter to be *res judicata* were not met. The claimant cited the case of *Zhanje* v *Gambe & Anor* HH 381/24, wherein the requirements for a matter to be deemed *res judicata* were outlined as follows:

a) the parties must be the same as in the prior matter.
b) the cause of action must be the same.
c) the prior case must have been decided on the merits.

[7] The claimant submitted that all requirements must be met and that they are to be considered cumulatively. Where any one requirement is not met, the defence fails. The claimant submitted that the matter under HCBC 396/25 was different from the present case, in that, under HCBC 396/25, the judgment debtor, Astra Building Center (Private) Limited, was not cited as a party. In light of that, the claimant prayed that the point *in limine* be dismissed and the matter be dealt with on the merits.

[8] In response, the judgment creditor argued that the claimant had failed to rebut the fact that the matter was *res judicata*. The judgment creditor indicated that, although the judgment debtor was not cited as a party, the facts of the case proved that the judgment creditor was the same. The judgment creditor highlighted that the claimant was Jabulani Nkomo Family Trust, who were represented by Jabulani Nkomo through an affidavit filed of record. The

judgment creditor indicated that in the previous matter, Jabulani Nkomo deposed to an affidavit, although it must be noted that then, he was claiming the motor vehicles as his. The judgment creditor indicated that the judgment creditor remained the same as well, submitting that, in effect, the parties remained the same. The judgment creditor thus prayed for the matter to be dismissed with costs at a punitive scale.

**Issue for determination**

Whether or not the matter is *res judicata.*

**Application of the law to facts**

[9] The principle of *res judicata* is well established in our law. The principle was explained in the case of *Muzika* v *Kamhunga & Anor* S-20-05, wherein the court referred to the book Herbstein and Van Winsen, *The Civil Practice of the Supreme Court of South Africa, 4th ed*, when it held that:

> "… the requisites of *res judicata* are; that the two actions must have been between the same parties, concerning the same subject matter and founded upon the same cause of complaint (*Le Roux* v *Le Roux* 1967 (1) SA 446 (A)."

[10] In *Tongogara Rural District Council* v *Ndiripo* S-19-23, the court outlined the requirements for *res judicata* at p 14 as follows:

> "Nonetheless, there are certain requirements that must be met for a plea of *res judicata* to prevail. These are essentially that:
>
> (1) the two actions must be between the same parties;
>
> (2) the two actions must concern the same subject-matter;
>
> (3) the two actions must be founded upon the same cause of action; and,
>
> (4) There must be a final judgment or determination of the matter in the first action.
>
> See *Flowerdale Investments (Pvt) Ltd & Anor* v *Bernard Construction (Pvt) Ltd & Ors* 2009 (1) ZLR 110 (S)."

[11] In summary, the requirements for *res judicata* can be outlined as follows:

i. The two actions must have been between the same parties.

ii. The two actions must be concerning the same subject matter.

iii. The two actions must be founded on the same cause of action.

iv. The matter must have been decided on the merits.

[12] A matter will thus be deemed *res judicata* if all the above-mentioned requirements are met. The effect of a finding that the matter is *res judicata*, as was held in *Tongogara Rural District Council* (*supra*), is that the court is precluded from reopening a case that has been litigated to finality.

[13] *In casu*, counsel for the claimant argued that the two actions were not before the same parties. The record clearly shows that, under HCBC 396/25, the applicant was the Sheriff of the High Court of Zimbabwe, same as in this matter. The claimant was Jabulani Nkomo, the same Jabulani Nkomo who deposed to a founding affidavit in this present matter, albeit that *in casu,* Jabulani Nkomo represents Jabulani Nkomo Family Trust. The judgment creditor was Ken Estate Agents, just as in this case.

[14] It is important to note, however, that under HCBC 396/25, the judgment debtor was not cited as a party. Inasmuch as the judgment debtor was not cited, the papers filed under HCBC 396/25 show that the judgment debtor was Astra Building Centre (Pvt) Ltd, a company that was indebted to the judgment creditor, just as in this case. The claimant herein submitted that, because the judgment debtor was not cited under HCBC 396/25, the parties were not the same.

[15] The claimant abandoned arguments in relation to the two other requirements that the cause of action is the same as under HCBC 396/25, and that both matters are of the same subject matter. Accordingly, this court finds that the claimant does not dispute that the second and third requirements to be met, where a matter is regarded as *res judicata*, have been met.

Based on the papers filed of record, it is not disputed that the matter under HCBC 396/25 was an interpleader, in which the claimant thereat was claiming ownership of three motor vehicles, which are the same motor vehicles claimed herein.

[16] Turning to the requirement that the parties must be the same, it is apparent that the claimant's bone of contention is that the judgment debtor was not a party to the proceedings under HCBC 396/25, and therefore, the parties are different in this case. Rule 32 of the High Court Rules, 2021 ("the Rules"), guides this court in respect of joinder or non-joinder of parties. Rule (15)(11) of the Rules provides that:

> "(11) No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party, and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter."

[17] The fact that the judgment debtor was not cited as a party in the matter under HCBC 396/25 does not mean that there was no judgment debtor. In fact, the affidavit filed by the claimant Jabulani Nkomo under HCBC 396/25, at para 2, clearly cites Astra Building Centre (Pvt) Ltd as the judgment debtor. For all intents and purposes, the judgment debtor under HCBC 396/25 is the same party herein. In light of the foregoing, this case cannot be defeated by reason of non-joinder of Astra Building Centre (Pvt) Ltd as the judgment debtor under HCBC 396/25.

[18] This court finds that the requirements for *res judicata* were fully met, in that the issue in dispute is between the same parties in both cases, the subject matter is the same in respect of both matters, and the cause of action is the same as in HCBC 396/25. Importantly, the court in HCBC 396/25 found that the motor vehicles were executable and so declared.

[19] It was for these reasons that I made the following order:

1. The matter be and is hereby struck off the roll.

2. The applicant be and is hereby authorized to deduct costs incurred in this application.
3. No order as to costs in respect of the claimant, judgment creditor and judgment debtor.

**CHIVAYO J: - ……..**

*Cheda and Cheda Associates*, claimant's legal practitioners.

*Masiye-Moyo & Associates*, judgment creditor's legal practitioners.